

Serious Incident Report no. 11008/2021

Report date and time (UTC)	2021-03-27	Sensitive Operational Information x4
Last modification date and time (UTC)	2022-12-19	
Reporting entity/function		
SIR Status	Closed	
Workflow Status	Processed	
SIR Category	Valid to 2021-04-30: 4 - Situations of alleged violations of Fundamental Rights or international protection obligations	
Subject	One migrant injured, alleged bodily harm by Guardia Civil	
Joint operation	JO Indalo 2021	
Original source of information	Migrant interview	
FX SI Handler	HoO.FRO	
Frontex resources involved	No	
Use of force	No	
Incident dates (UTC)	2021-03-24	Sensitive Operational Information x5
Location of the incident	Andalusia, Spain	
Latitude		
Longitude		
Location details		
Reference to the operational area	No	
Type of resources / involvement		Human Resources
Dead persons		
Injured persons	2	
Missing persons	-	

Details

Information/Allegations	On 25.03.2021, 5 Algerian migrants arriving in Spain that day on board the same boat were screened in Almeria by Frontex Staff. Two of them presented visible signs of violence; The first one, with a bruise around his left eye, provided no explanation for his injury; The second one (he could barely walk and had dry blood on his face and ears) reported to be beaten by Guardia Civil personnel in San Jose (Almeria); Statement of attached.	Human Resources
Measures/Actions taken		
Assessment	The migrant, brought to the police station, refused to file a complaint. FRO considers that the alleged facts could amount to serious breaches of the right to life, integrity, human dignity, the prohibition of torture and inhuman and degrading treatment, as well as the Frontex Code of Conduct. Furthermore, FRO does not consider the information provided by the Spanish	

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	authorities to be sufficient to corroborate or refute the alleged facts of the case provided via this SIR.
Personal Data	
Final Report	
Key points	
Description of the event - Timeline	
Information collected - Contributors/Entities consulted - Follow-up	
Assessment	
Final conclusion - Proposals - Lessons learned	Having in mind the statement of the Spanish authorities and that no additional information or evidence was obtained to corroborate the alleged facts, FRO recommends the closure of the SIR. Despite the fact that according to the response from the national authorities, FRO would like to emphasize potential risks in incidents of such nature. The allegations relate to police conduct that potentially amounts to degrading treatment of a person in a vulnerable situation, which is specifically prohibited by Article 4 of the EU Charter. As defined by the European Court of Human Rights (hereinafter "ECtHR"), degrading treatment is an ill-treatment which arouses in victims' "feelings of fear, anguish and inferiority capable of humiliating and debasing them and possibly breaking their physical or moral resistance". Such police alleged acts directly interfere with the right to human dignity, which as set by Article 1 of the EU Charter, must be respected, and protected. Furthermore, in the course of aforementioned police officers' actions, it is clear that the person subjected to these actions did not have access to an effective remedy. As provided by Article 47 of the EU Charter, the persons whose rights and freedoms guaranteed by law of the EU are violated have the right to an effective remedy. Moreover, in this context, FRO would like to underline the importance of the investigative procedure to be conducted in a full compliance with the principles of impartiality, objectivity, and confidentiality. FRO has repeatedly called for involvement of the central internal control units in investigations where fundamental rights allegations are at stake, even at the local level with a clear supervisory role. Such control should ideally be carried out by fundamental rights experts/focal points at central level of Member States authorities where this figure exists. Following the established investigation/inquiry procedures in such cases is of outmost importance to guarantee an adequate treatment of the information and procedural safeguards of the interviewed persons. Last but not at least, FRO underlines the significance of the prompt and efficient exchange of information and follow-up among involved national stakeholders and Frontex, in particular SI-Handler. In view of the above, FRO recommends the following actions: For Spanish authorities: 1. To share final investigative reports with Frontex and FRO as it could be beneficial for all stakeholders to add transparency and provide feedback on the measures taken by the host Member State when incidents alleging violations of fundamental rights occur during operational activities. 2. To continuously train and sensitise police officers to the need to assess and act in accordance with fundamental rights standards, including use of force. 3. To ensure application of safeguards and provision of assistance within the limits of what is possible as soon as migrants are detected. For Frontex: 1. For the [REDACTED], to ensure that the risks outlined in this SIR, and other SIRs related to Spain, as a host Member State, are reflected in future operation planning and implementation. 2. To encourage as well to protect Frontex operational staff reporting Serious Incidents to FRO.

Sensitive Operational Information

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